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APOSTOLIC CONSTITUTION SAPIENTIA CHRISTIANA OF THE SUPREME PONTIFF POPE JOHN PAUL II ON ECCLESIASTICAL UNIVERSITIES AND FACULTIES

JOHN PAUL, BISHOP SERVANT OF THE SERVANTS OF GOD FOR PERPETUAL REMEMBRANCE

FOREWORD

I

Christian wisdom, which the Church teaches by divine authority, continuously inspires the faithful of Christ zealously to endeavor to relate human affairs and activities with religious values in a single living synthesis. Under the direction of these values all things are mutually connected for the glory of God and the integral development of the human person, a development that includes both corporal and spiritual well - being.(1)

Indeed, the Church's mission of spreading the Gospel not only demands that the Good News be preached ever more widely and to ever greater numbers of men and women, but that the very power of the Gospel should permeate thought patterns, standards of judgment, and norms of behavior; in a word, it is necessary that the whole of human culture be steeped in the Gospel.(2)

The cultural atmosphere in which a human being lives has a great influence upon his or her way of thinking and, thus, of acting. Therefore, a division between faith and culture is more than a small impediment to evangelization, while a culture penetrated with the Christian spirit is an instrument that favors the spreading of the Good News.

Furthermore, the Gospel is intended for all peoples of every age and land and is not bound exclusively to any particular culture. It is valid for pervading all cultures so as to illumine them with the light of divine revelation and to purify human conduct, renewing them in Christ.

For this reason, the Church of Christ strives to bring the Good News to every sector of humanity so as to be able to convert the consciences of human beings, both individually and collectively, and to fill with the light of the Gospel their works and undertakings, their entire lives, and, indeed, the whole of the social environment in which they are engaged. In this way the Church carries out her mission of evangelizing also by advancing human culture.(3)

II

In this activity of the Church with regard to culture, Catholic universities have had and still have special importance. By their nature they aim to secure that "the Christian outlook should acquire a public, stable and universal influence in the whole process of the promotion of higher culture."(4)

In fact, as my Predecessor Pope Pius XI recalled in the preface to the Apostolic Constitution Deus Scientiarum Dominus,(5) there arose within the Church, from her earliest period, didascaleia for imparting instruction in Christian wisdom so that people's lives and conduct might be formed. From these houses of Christian wisdom the most illustrious Fathers and Doctors of the Church, teachers and ecclesiastical writers, drew their knowledge.

With the passing of centuries schools were established in the neighborhood of cathedrals and monasteries, thanks especially to the zealous initiatives of bishops and monks. These schools imparted both ecclesiastical doctrine and secular culture, forming them into one whole. From these schools arose the universities, those glorious institutions of the Middle Ages which, from their beginning, had the Church as their most bountiful mother and patroness.

Subsequently, when civil authorities, to promote the common good, began and developed their own universities, the

Church, loyal to her very nature, did not desist from founding and favoring such kinds of centers of learning and institutions of instruction. This is shown by the considerable number of Catholic universities established in recent times in nearly all parts of the world. Conscious of her worldwide salvific mission, the Church wishes to be especially joined to these centers of higher learning and she desires that they flourish everywhere and work effectively to make Christ's true message present in the field of human culture and to make it advance in that field.

In order that Catholic universities might better achieve this goal, my Predecessor Pope Pius XII sought to stimulate their united activity when, by his Apostolic Brief of July 27, 1949, he formally established the International Federation of Catholic Universities. It was "to include all Athenaea which the Holy See either has canonically erected or will in the future erect in the world, or will have explicitly recognized as following the norms of Catholic teaching and as completely in conformity with that teaching."(6)

The Second Vatican Council, for this reason, did not hesitate to affirm that "the Church devotes considerable care to schools of higher learning," and it strongly recommended that Catholic universities should "be established in suitable locations throughout the world" and that "the students of these institutions should be truly outstanding in learning, ready to shoulder duties of major responsibility in society and to witness to the faith before the world."(7) As the Church well knows, "the future of society and of the Church herself is closely bound up with the development of young people engaged in higher studies."(8)

III

It is not surprising, however, that among Catholic universities the Church has always promoted with special care Ecclesiastical Faculties and Universities, which is to say those concerned particularly with Christian revelation and questions connected therewith and which are therefore more closely connected with her mission of evangelization.

In the first place, the Church has entrusted to these Faculties the task of preparing with special care students for the priestly ministry, for teaching the sacred sciences, and for the more arduous tasks of the apostolate. It is also the task of these Faculties "to explore more profoundly the various areas of the sacred disciplines so that day by day a deeper understanding of sacred revelation will be developed, the heritage of Christian wisdom handed down by our ancestors will be more plainly brought into view, dialogue will be fostered with our separated brothers and sisters and with non - Christians, and solutions will be found for problems raised by doctrinal progress."(9)

In fact, new sciences and new discoveries pose new problems that involve the sacred disciplines and demand an answer. While carrying out their primary duty of attaining through theological research a deeper grasp of revealed truth, those engaged in the sacred sciences should therefore maintain contact with scholars of other disciplines, whether these are believers or not, and should try to evaluate and interpret the latters' affirmations and judge them in the light of revealed truth.(10)

From this assiduous contact with reality, theologians are also encouraged to seek a more suitable way of communicating doctrine to their contemporaries working in other various fields of knowledge, for "the deposit of faith, or the truths contained in our venerable doctrine, is one thing; quite another is the way in which these truths are formulated, while preserving the same sense and meaning."(11) This will be very useful so that among the People of God religious practice and uprightness of soul may proceed at an equal pace with the progress of science and technology, and so that, in pastoral work, the faithful may be gradually led to a purer and more mature life of faith.

The possibility of a connection with the mission of evangelization also exists in Faculties of other sciences which, although lacking a special link with Christian revelation, can still help considerably in the work of evangelizing. These are looked at by the Church precisely under this aspect when they are erected as Ecclesiastical Faculties. They therefore have a particular relationship with the Church's Hierarchy.

Thus, the Apostolic See, in carrying out its mission, is clearly aware of its right and duty to erect and promote Ecclesiastical Faculties dependent on itself, either with a separate existence or as parts of universities, Faculties destined for the education of both ecclesiastical and lay students. This See is very desirous that the whole People of God, under the guidance of their Shepherds, should cooperate to ensure that these centers of learning contribute

effectively to the growth of the faith and of Christian life.

IV

Ecclesiastical Faculties -- which are ordered to the common good of the Church and have a valuable relationship with the whole ecclesial community -- ought to be conscious of their importance in the Church and of their participation in the ministry of the Church. Indeed, those Faculties which treat of matters that are close to Christian revelation should also be mindful of the orders which Christ, the Supreme Teacher, gave to His Church regarding this ministry: "Go therefore and make disciples of all nations, baptizing them in the name of the Father and of the Son and of the Holy Spirit, teaching them to observe all that I have commanded you" (Mt. 28:19 - 20). From this it follows that there must be in these Faculties that adherence by which they are joined to the full doctrine of Christ, whose authentic guardian and interpreter has always been through the ages the Magisterium of the Church.

Bishops' Conferences in the individual nations and regions where these Faculties exist must diligently see to their care and progress, at the same time that they ceaselessly promote their fidelity to the Church's doctrine, so that these Faculties may bear witness before the whole community of the faithful to their wholehearted following of the above - mentioned command of Christ. This witness must always be borne both by the Faculty as such and by each and every member of the Faculty. Ecclesiastical Universities and Faculties have been constituted in the Church for the building up and perfecting of Christ's faithful, and they must always bear this in mind as a criterion in the carrying out of their work.

Teachers are invested with very weighty responsibility in fulfilling a special ministry of the word of God and in being instructors of the faith for the young. Let them, above all, therefore be for their students, and for the rest of the faithful, witnesses of the living truth of the Gospel and examples of fidelity to the Church. It is fitting to recall the serious words of Pope Paul VI: "The task of the theologian is carried out with a view to building up ecclesial communion so that the People of God may grow in the experience of faith."(12)

V

To attain these purposes, Ecclesiastical Faculties should be organized in such a way as to respond to the new demands of the present day. For this reason, the Second Vatican Council stated that their laws should be subjected to revision.(13)

In fact, the Apostolic Constitution Deus Scientiarum Dominus, promulgated by my Predecessor Pope Pius XI on May 24, 1931, did much in its time renew higher ecclesiastical studies. However, as a result of changed circumstances, it now needs to be suitably adapted and altered.

In the course of nearly fifty years great changes have taken place not only in civil society but also in the Church herself. Important events, especially the Second Vatican Council, have occurred, events which have affected both the internal life of the Church and her external relationships with Christians of other churches, with non - Christians, and with non - believers, as well as with all those in favor of a more human civilization.

In addition, there is a steadily growing interest being shown in the theological sciences, not only among the clergy but also by lay people, who are attending theological schools in increasing numbers. These schools have, as a consequence, greatly multiplied in recent times.

Finally, a new attitude has arisen about the structure of universities and Faculties, both civil and ecclesiastical. This is a result of the justified desire for a university life open to greater participation, a desire felt by all those in any way involved in university life.

Nor can one ignore the great evolution that has taken place in pedagogical and didactic methods, which call for new ways of organizing studies. Then too there is the closer connection that is being felt more and more between various sciences and disciplines, as well as the desire for greater cooperation in the whole university environment.

To meet these new demands, the Sacred Congregation for Catholic Education, responding to the mandate received

from the Council, already in 1967 began to study the question of renewal along the lines indicated by the Council. On May 20, 1968, it promulgated the Normae quaedam ad Constitutionem Apostolicam "Deus Scientiarum Dominus" de studies academicis ecclesiasticis recognoscendam, which has exercised a beneficial influence during recent years.

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Now, however, this work needs to be completed and perfected with a new law. This law, abrogating the Apostolic Constitution Deus Scientiarum Dominus and the Norms of Application attached to it, as well as the Normae quaedam published on May 20, 1968, by the Sacred Congregation for Catholic Education, includes some still valid elements from these documents, while laying down new norms whereby the renewal that has already successfully begun can be developed and completed.

Nobody is unaware of the difficulties that appear to impede the promulgation of a new Apostolic Constitution. In the first place, there is the "passage of time" which brings changes so rapidly that it seems impossible to lay down anything stable and permanent. Then there is the "diversity of places" which seems to call for a pluralism which would make it appear almost impossible to issue common norms, valid for all parts of the world.

Since however there exist Ecclesiastical Faculties throughout the world, which are erected and approved by the Holy See and which grant academic degrees in its name, it is necessary that a certain substantial unity be respected and that the requisites for gaining academic degrees be clearly laid down and have universal value. Things which are necessary and which are foreseen as being relatively stable must be set down by law, while at the same time a proper freedom must be left for introducing into the Statutes of the individual Faculties further specifications, taking into account varying local conditions and the university customs obtaining in each region. In this way, legitimate progress in academic studies is neither hindered nor restricted, but rather is directed through right channels towards obtaining better results. Moreover, together with the legitimate differentiation of the Faculties, the unity of the Catholic Church in these centers of education will also be clear to everyone.

Therefore, the Sacred Congregation for Catholic Education, by command of my Predecessor Pope Paul VI, has consulted first of all, the Ecclesiastical Universities and Faculties themselves, then, the departments of the Roman Curia and the other bodies interested. After this, it established a commission of experts who, under the direction of the same Congregation, have carefully reviewed the legislation covering ecclesiastical academic studies.

This work has now been successfully completed, and Pope Paul VI was about to promulgate this Constitution, as he so ardently desired to do, when he died; likewise Pope John

Paul I was prevented by sudden death from doing so. After long and careful consideration of the matter, I decree and lay down, by my apostolic authority, the following laws and norms.

PART ONE

GENERAL NORMS

Section I

Nature and Purpose of Ecclesiastical Universities and Faculties

Article 1. To carry out the ministry of evangelization given to the Church by Christ, the Church has the right and duty to erect and promote Universities and Faculties which depend upon herself.

Article 2. In this Constitution the terms Ecclesiastical Universities and Faculties mean those which have been canonically erected or approved by the Apostolic See, which foster and teach sacred doctrine and the sciences connected therewith, and which have the right to confer academic degrees by the authority of the Holy See.

Article 3. The purpose of Ecclesiastical Faculties are:

n. 1. through scientific research to cultivate and promote their own disciplines, and especially to deepen knowledge of Christian revelation and of matters connected with it, to enunciate systematically the truths contained therein, to consider in the light of revelation the most recent progress of the sciences, and to present them to the people of the present day in a manner adapted to various cultures;

n. 2. to train the students to a level of high qualification in their own disciplines, according to Catholic doctrine, to prepare them properly to face their tasks, and to promote the continuing permanent education of the ministers of the Church;

n. 3. to collaborate intensely, in accordance with their own nature and in close communion with the Hierarchy, with the local and the universal Church the whole work of evangelization.

Article 4. It is the duty of Bishops' Conferences to follow carefully the life and progress of Ecclesiastical Universities and Faculties, because of their special ecclesial importance.

Article 5. The canonical erection or approval of Ecclesiastical Universities and Faculties is reserved to the Sacred Congregation for Catholic Education, which governs them according to law.(14)

Article 6. Only Universities and Faculties canonically erected or approved by the Holy See and ordered according to the norms of this present Constitution have the right to confer academic degrees which have canonical value, with the exception of the special right of the Pontifical Biblical Commission.(15)

Article 7. The Statutes of each University or Faculty, which must be drawn up in accordance with the present Constitution, require approval by the Sacred Congregation for Catholic Education.

Article 8. Ecclesiastical Faculties erected or approved by the Holy See in non - ecclesiastical universities, which confer both canonical and civil academic degrees, must observe the prescriptions of the present Constitution, account being taken of the conventions signed by the Holy See with various nations or with the universities themselves.

Article 9. n. 1. Faculties which have not been canonically erected or approved by the Holy See may not confer academic degrees having canonical value.

n. 2. Academic degrees conferred by such Faculties, if they are to have value for some canonical effects only, require the recognition of the Sacred Congregation for Catholic Education.

n. 3. For this recognition to be given for individual degrees for a special reason, the conditions laid down by the Sacred Congregation must be fulfilled.

Article 10. For the correct carrying out of the present Constitution, the Norms of application issued by the Sacred Congregation for Catholic Education must be observed.

Section II

The Academic Community and Its Government

Article 11. n. 1. Since the University or Faculty forms a sort of community, all the people in it, either as individuals or as members of councils, must feel, each according to his or her own status, co - responsible for the common good and must strive to work for the institution's goals.

n. 2. Therefore, their rights and duties within the academic community must be accurately set down in the Statutes, to ensure that they are properly exercised within correctly established limits.

Article 12. The Chancellor represents the Holy See to the University or Faculty and equally the University or Faculty to the Holy See. He promotes the continuation and progress of the University or Faculty and he fosters its communion with

the local and universal Church.

Article 13. n. 1. The Chancellor is the Prelate Ordinary on whom the University or Faculty legally depends, unless the Holy See established otherwise.

n. 2. Where conditions favor such a post, it is also possible to have a Vice - Chancellor, whose authority is determined in the Statutes.

Article 14. If the Chancellor is someone other than the local Ordinary, the statutory norms are to establish how the Ordinary and the Chancellor carry out their respective offices in mutual accord.

Article 15. The academic authorities are personal and collegial. Personal authorities are, in the first place, the Rector or President and the Dean. The collegial authorities are the various directive organisms or councils of the University or Faculty.

Article 16. The Statute of the University Faculty must very carefully set out the names and offices of the academic authorities, determining the way they are designated and their term of office, taking into account both the canonical nature of the individual University or Faculty and the university practice in the local area.

Article 17. Those designed as academic authorities are to be people who are truly knowledgeable about university life and, usually, who come from among the teachers of some Faculty.

Article 18. The Rector and the President are named, or at least confirmed, by the Sacred Congregation for Catholic Education.

Article 19. n. 1. The Statutes determine how the personal and the collegial authorities are to collaborate with each other, so that, carefully observing the principle of collegiality, especially in more serious matters and above all in those of an academic nature, the persons in authority will enjoy that exercise of power which really corresponds to their office.

n. 2. This applies, in the first place, to the Rector, who has the duty to govern the entire University and to promote, in a suitable way, its unity, cooperation, and progress.

Article 20. n. 1. When Faculties are parts of an Ecclesiastical University, their governance must be coordinated through the Statutes with the governance of the entire University in such a way that the good of the single Faculties is assured, at the same time that the good of the whole University is promoted and the cooperation of all the Faculties with each other is favored.

n. 2. The canonical exigencies of Ecclesiastical Faculties must be safeguarded even when such Faculties are inserted into non - Ecclesiastical universities.

Article 21. When a Faculty is joined to a seminary or college, the Statutes, while always having due concern for cooperation in everything pertaining to the students' good, must clearly and effectively provide that the academic direction and administration of the Faculty is correctly distinct from the governance and administration of the seminary or college.

Section III

Teachers

Article 22. In each Faculty there must be a number of teachers, especially permanent ones, which corresponds to the importance and development of the individual disciplines as well as to the proper care and profit of the students.

Article 23. There must be various ranks of teachers, determined in the Statutes, according to their measure of preparation, their insertion into the Faculty, their permanence, and their responsibility to the Faculty, taking into account

the university practice of the local area.

Article 24. The Statutes are to define which authorities are responsible for hiring, naming, and promoting teachers, especially when it is a question of giving them a permanent position.

Article 25. n. 1. To be legitimately hired as a permanent teacher in a Faculty, a person must:

1) be distinguished by wealth of knowledge, witness of life, and a sense of responsibility;

2) have a suitable doctorate or equivalent title or exceptional and singular scientific accomplishment;

3) show documentary proof of suitability for doing scientific research, especially by a published dissertation;

4) demonstrate teaching ability.

n. 2. These requirements for taking on permanent teachers must be applied also, in proportionate measure, for hiring non - permanent ones.

n. 3. In hiring teachers, the scientific requirements in current force in the university practice of the local area should be taken into account.

Article 26. n. 1. All teachers of every rank must be marked by an upright life, integrity of doctrine, and devotion to duty, so that they can effectively contribute to the proper goals of an Ecclesiastical Faculty.

n. 2. Those who teach matters touching on faith and morals are to be conscious of their duty to carry out their work in full communion with the authentic Magisterium of the Church, above all, with that of the Roman Pontiff.(16)

Article 27 n. 1 Those who teach disciplines concerning faith or morals must receive, after making their profession of faith, a canonical mission from the Chancellor or his delegate, for they do not teach on their own authority but by virtue of the mission they have received from the Church. The other teachers must receive permission to teach from the Chancellor or his delegate.

n. 2. All teachers, before they are given a permanent post or before they are promoted to the highest category of teacher, or else in both cases, as the Statutes are to state, must receive a declaration of nihil obstat from the Holy See.

Article 28. Promotion to the higher ranks of teachers is to take place only after a suitable interval of time and with due reference to teaching skill, to research accomplished, to the publication of scientific works, to the spirit of cooperation in teaching and in research, and to commitment to the Faculty.

Article 29. The teachers, in order to carry out their tasks satisfactorily, must be free from other employment which cannot be reconciled with their duty to do research and to instruct, according to what the Statutes require for each rank of teacher.

Article 30. The Statutes must state:

a) when and under which conditions a teaching post ends;

b) for what reasons and in which ways a teacher can be suspended, or even deprived of his post, so as to safeguard suitably the rights of the teachers, of the Faculty or University, and, above all, of the students and also of the ecclesial community.

Section IV

Students

Article 31. Ecclesiastical Faculties are open to all, whether ecclesiastics or laity, who can legally give testimony to leading a moral life and to having completed the previous studies appropriate to enrolling in the Faculty.

Article 32. n. 1. To enroll in a Faculty in order to obtain an academic degree, one must present that kind of study title which would be necessary to permit enrollment in a civil university of one's own country or of the country where the Faculty is located.

n. 2. The Faculty, in its own Statutes, should determine what, besides what is contained in n. 1 above, is needed for entrance into its course of study, including ancient and modern language requirements.

Article 33. Students must faithfully observe the laws of the Faculty about the general program and about discipline -- in the first place about the study program, class attendance, and examinations -- as well as all that pertains to the life of the Faculty.

Article 34. The Statutes should define how the students, either individually or collectively, take part in the university community life in those aspects which can contribute to the common good of the Faculty or University.

Article 35. The Statutes should equally determine how the students can for serious reasons be suspended from certain rights or be deprived of them or even be expelled from the Faculty, in such a way that the rights of the student, of the Faculty or University, and also of the ecclesial community are appropriately protected.

Section V

Officials and Staff Assistants

Article 36. n. 1. In governing and administering a University or Faculty, the authorities are to be assisted by officials trained for various tasks.

n. 2. The officials are, first of all, the Secretary, the Librarian, and the Financial Procurator.

Article 37. There should also be other staff assistants who have the task of vigilance, order, and other duties, according to the needs of the University or Faculty.

Section VI

Study Program

Article 38. n. 1. In arranging the studies, the principles and norms which for different matters are contained in ecclesiastical documents, especially those of the Second Vatican Council, must be carefully observed. At the same time account must be taken of sound advances coming from scientific progress which can contribute to answering the questions being currently asked.

n. 2. In the single Faculties let that scientific method be used which corresponds to the needs of the individual sciences. Up - to - date didactic and teaching methods should be applied in an appropriate way, in order to bring about the personal involvement of the students and their suitable, active participation in their studies.

Article 39. n. 1. Following the norm of the Second Vatican Council, according to the nature of each Faculty:

1) just freedom(17) should be acknowledged in research and teaching so that true progress can be obtained in learning and understanding divine truth;

2) at the same time it is clear that:

a) true freedom in teaching is necessarily contained within the limits of God's Word, as this is constantly taught by the Church's Magisterium,

b) likewise, true freedom in research is necessarily based upon firm adherence to God's Word and deference to the Church's Magisterium, whose duty it is to interpret authentically the Word of God.

n. 2. Therefore, in such a weighty matter one must proceed with prudence, with trust, and without suspicion, at the same time with judgment and without rashness, especially in teaching, while working to harmonize studiously the necessities of science with the pastoral needs of the People of God.

Article 40. In each Faculty a curriculum of studies is to be suitably organized in steps or cycles, adapted to the material. The are usually as follows:

a) first, a general instruction is imparted, covering a coordinated presentation of all the disciplines, along with an introduction into scientific methodology;

b) next, one section of the disciplines is studied more profoundly, at the same time that the students practice scientific research more fully;

c) finally, there is progress toward scientific maturity, especially through a written work which truly makes a contribution to the advance of the science.

Article 41. n. 1. The disciplines which are absolutely necessary for the Faculty to achieve its purposes should be determined. Those also should be set out which in a different way are helpful to these purposes and, therefore, how these are suitably distinguished one from another.

n. 2. In each Faculty the disciplines should be arranged in such a way that they form an organic body, so as to serve the solid and coherent formation of the students and to facilitate collaboration by the teachers.

Article 42. Lectures, especially in the basic cycle, must be given, and the students must attend them, according to the norms to be determined in the Statutes.

Article 43. Practical exercises and seminars, mainly in the specialization cycle, must be assiduously carried on under the direction of the teachers. These ought to be constantly complemented by private study and frequent discussions with the teachers.

Article 44. The Statutes of the Faculty are to define which examinations or which equivalent tests the students are to take, whether written or oral, at the end of the semester, of the year, and especially of the cycle, so that their ability can be verified in regard to continuing in the Faculty and in regard to receiving academic degrees.

Article 45. Likewise the Statutes are to determine what value is to given for studies taken elsewhere, especially in regard to being dispensed from some disciplines or examinations or even in regard to reducing the curriculum, always, however, respecting the prescriptions of the Sacred Congregation for Catholic Education.

Section VII

Academic Degrees

Article 46. n. 1. After each cycle of the curriculum of studies, the suitable academic degree can be conferred, which must be established for each Faculty, with attention given to the duration of the cycle and to the disciplines taught in it.

n. 2. Therefore, according to the general and special norms of this Constitution, all degrees conferred and the conditions under which they are conferred are to be determined in the Statutes of the individual Faculties.

Article 47. 1. The academic degrees conferred by an Ecclesiastical Faculty are: Baccalaureate, Licentiate, and Doctorate.

n.2. Special qualifications can be added to the names of these degrees according to the diversity of Faculties and the order of studies in the individual Faculties.

Article 48. Academic degrees can be given different names in the Statutes of the individual Faculties, taking account of the university practice in the local area, indicating, however, with clarity the equivalence these have with the names of the academic degrees above and maintaining uniformity among the Ecclesiastical Faculties of the same area.

Article 49. n. 1. Nobody can obtain an academic degree unless properly enrolled in a Faculty, completing the course of studies prescribed by the Statutes, and successfully passing the examinations or tests.

n. 2. Nobody can be admitted to the doctorate unless first having obtained the licentiate.

n. 3. A requisite for obtaining a doctorate, furthermore, is a doctoral dissertation that makes a real contribution to the progress of science, written under the direction of a teacher, publicly defended and collegially approved; the principal part, at least, must be published.

Article 50. n. 1. The doctorate is the academic degree which enables one to teach in a Faculty and which is therefore required for this purpose, the licentiate is the academic degree which enables one to teach in a major seminary or equivalent school and which is therefore required for this purpose.

n. 2. The academic degrees which are required for filling various ecclesiastical posts are to be stated by the competent ecclesiastical authority.

Article 51. An honorary doctorate can be conferred for special scientific merit or cultural accomplishment in promoting the ecclesiastical sciences.

Section VIII

Matters Relating to Teaching

Article 52. In order to achieve its proper purposes, especially in regard to scientific research, each University or Faculty must have an adequate library, in keeping with the needs of the staff and students. It must be correctly organized and equipped with an appropriate catalogue.

Article 53. Through an annual allotment of money, the library must continually acquire books, old and new, as well as the principal reviews, so as to be able effectively to serve research, teaching of the disciplines, instructional needs, and the practical exercises and seminars.

Article 54. The library must be headed by a trained librarian, assisted by a suitable council. The librarian participates opportunely in the Council of the University or Faculty.

Article 55. n. The Faculty must also have technical equipment, audio - visual materials, etc., to assist its didactic work.

n. 2. In relationship to the special nature and purpose of a University or Faculty, research institutions and scientific laboratories should also be available, as well as other apparatus needed for the accomplishment of its ends.

Section IX

Economic Matters

Article 56. A University or Faculty must have enough money to achieve its purposes properly. Its financial endowments

and its property rights are to be carefully described.

Article 57. The Statutes are to determine the duty of the Financial Procurator as well as the part the Rector or President and the University or Faculty Council play in money matters, according to the norms of good economics and so as to preserve healthy administration.

Article 58. Teachers, officials, and staff assistants are to be paid a suitable remuneration, taking account of the customs of the local area, and also taking into consideration social security and insurance protection.

Article 59. Likewise, the Statutes are to determinate the general norms that will indicate the ways the students are to contribute to the expenses of the University or Faculty, by paying admission fees, yearly tuition, examination fees, and diploma fees.

Section X

Planning and Cooperation of Faculties

Article 60. n. 1. Great care must be given to the distribution, or as it is called, the planning of Universities and Faculties, so as to provide for their conservation, their progress, and their suitable distribution in different parts of the world.

n. 2. To accomplish this end, the Sacred Congregation for Catholic Education is to be helped by advice from the Bishops' Conferences and from a commission of experts.

Article 61. The erection or approval of a new University or Faculty is decided upon by the Sacred Congregation for Catholic Education when all the requirements are fulfilled. In this the Congregation listens to the local Ordinaries, the Bishops' Conference, and experts, especially from neighboring Faculties.

Article 62. n. 1. Affiliation of some institution with a Faculty for the purpose of being able to grant the bachelor's degree is approved by the Sacred Congregation for Catholic Education, after the conditions established by that same Sacred Congregation are fulfilled.

n. 2. It is highly desirable that theological study centers, whether diocesan or religious, be affiliated to a Faculty of Sacred Theology.

Article 63. Aggregation to a Faculty and incorporation into a Faculty by an institution for the purposes of also granting higher academic degrees is decided upon by the Sacred Congregation for Catholic Education, after the conditions established by that same Sacred Congregation are fulfilled.

Article 64. Cooperation between Faculties, whether of the same University or of the same region or of a wider territorial area, is to be diligently striven for. For this cooperation is of great help to the scientific research of the teachers and to the better formation of the students. It also fosters the advance of interdisciplinary collaboration, which appears ever more necessary in current times, as well as contributing to the development of complementarity among Faculties. It also helps to bring about the penetration by Christian wisdom of all culture.

PART TWO

SPECIAL NORMS

Article 65. Besides the norms common to all Ecclesiastical Faculties, which are established in the first part of this Constitution, special norms are given here - under for certain of those Faculties, because of their particular nature and importance for the Church.

Section I

Faculty of Sacred Theology

Article 66. A Faculty of Sacred Theology has the aim of profoundly studying and systematically explaining, according to the scientific method proper to it, Catholic doctrine, derived with the greatest care from divine revelation. It has the further aim of carefully seeking the solution to human problems in the light of that same revelation.

Article 67. n. 1. The study of Sacred Scripture is, as it were, the soul of Sacred Theology, which rests upon the written Word of God together with living Tradition, as its perpetual foundation.(18)

n. 2. The individual theological disciplines are to be taught in such a way that, from their internal structure and from the proper object of each as well as from their connection with other disciplines, including philosophical ones and the sciences of man, the basic unity of theological instruction is quite clear, and in such a way that all the disciplines converge in a profound understanding of the mystery of Christ, so that this can be announced with greater effectiveness to the People of God and to all nations.

Article 68. n. 1. Revealed truth must be considered also in connection with contemporary, evolving, scientific accomplishments, so that it can be seen "how faith and reason give harmonious witness to the unity of all truth."(19) Also, its exposition is to be such that, without any change of the truth, there is adaptation to the nature and character of every culture, taking special account of the philosophy and the wisdom of various peoples. However, all syncretism and every kind of false particularism are to be excluded.(20)

n. 2. The positive values in the various cultures and philosophies are to be sought out, carefully examined, and taken up. However, systems and methods incompatible with Christian faith must not be accepted.

Article 69. Ecumenical questions are to be carefully treated, according to the norms of competent Church authorities.(21) Also to be carefully considered are relationships with non - Christian religions; and problems arising from contemporary atheism are to be scrupulously studied.

Article 70. In studying and teaching the Catholic doctrine, fidelity to the Magisterium of the Church is always to be emphasized. In the carrying out of teaching duties, especially in the basic cycle, those things are, above all, to be imparted which belong to the received patrimony of the Church. Hypothetical or personal opinions which come from new research are to be modestly presented as such.

Article 71. In presenting doctrine, those norms are to be followed which are in the documents of the Second Vatican Council,(22) as well as those found in more recent documents of the Holy See(23) insofar as these pertain to academic studies.

Article 72. The curriculum of studies of a Faculty of Sacred Theology comprises:

a) the first cycle, fundamentals, which lasts for five years or ten semesters, or else, when a previous two - year philosophy course is an entrance requirement, for three years. Besides a solid philosophical formation, which is a necessary propaedeutic for theological studies, the theological disciplines must be taught in such a way that what is presented is an organic exposition of the whole of Catholic doctrine, together with an introduction to theological scientific methodology.

The cycle ends with the academic degree of Baccalaureate or some other suitable degree as the Statutes of the Faculty determine.

b) the second cycle, specialization, which lasts for two years or four semesters. In this cycle the special disciplines are taught corresponding to the nature of the diverse specializations being undertaken. Also seminars and practical exercises are conducted for the acquisition of the ability to do scientific research.

The cycle concludes with the academic degree of specialized Licentiate.

c) the third cycle, in which for a suitable period of time scientific formation is brought to completion, especially through the writing of a doctrinal dissertation.

The cycle concludes with the academic degree of Doctorate.

Article 73. n. 1. To enroll in a Faculty of Sacred Theology, the student must have done the previous studies called for in accordance with article 32 of this Constitution.

n. 2. Where the first cycle of the Faculty lasts for only three years, the student must submit proof of having properly completed a two - year course in philosophy at a Faculty of Philosophy or at an approved institution.

Article 74. n. 1. A Faculty of Sacred Theology has the special duty of taking care of the scientific theological formation of those preparing for the priesthood or preparing to hold some ecclesiastical office.

n. 2 For this purpose, special courses suitable for seminarians should be offered. It is also appropriate for the Faculty itself to offer the "pastoral year" required for the priesthood, in addition to the five - year basic cycle. At the end of this year, a special Diploma may be conferred.

Section II

Faculty of Canon Law

Article 75. A Faculty of Canon Law, whether Latin or Oriental, has the aim of cultivating and promoting the juridical disciplines in the light of the law of the Gospel and of deeply instructing the students in these, so as to form researchers, teachers, and others who will be trained to hold special ecclesiastical posts.

Article 76. The curriculum of studies of a Faculty of Canon Law comprises:

a) the first cycle, lasting at least one year or two semesters, in which are studied the general fundamentals of Canon Law and those disciplines which are required for higher juridical formation;

b) the second cycle, lasting two years or four semesters, during which the entire Code of Canon Law is studied in depth, along with other disciplines having an affinity with it;

c) the third cycle, lasting at least a year or two semesters, in which juridical formation is completed and a doctoral dissertation is written.

Article 77. n. 1. With regard to the studies prescribed for the first cycle, the Faculty may make use of the studies done in another Faculty and which it can acknowledge as responding to its needs.

n. 2. The second cycle concludes with the Licentiate and the third with the Doctorate.

n. 3. The Statutes of the Faculty are to define the special requirements for the conferring of the academic degrees, observing the Norms of Application of the Sacred Congregation for Catholic Education.

Article 78. To enroll in a Faculty of Canon Law, the student must have done the previous studies called for in accordance with Article 32 of this Constitution.

Section III

Faculty of Philosophy

Article 79. n. 1. An Ecclesiastical Faculty of Philosophy has the aim of investigating philosophical problems according to scientific methodology, basing itself on a heritage of perennially valid philosophy.(24) It has to search for solutions in the

light of natural reason and, furthermore, it has to demonstrate their consistency with the Christian view of the world, of man, and of God, placing in a proper light the relationship between philosophy and theology.

n. 2. Then, the students are to be instructed so as to make them ready to teach and to fill other suitable intellectual posts as well as to prepare them to promote Christian culture and to undertake a fruitful dialogue with the people of our time.

Article 80. In the teaching of philosophy, the relevant norms should be observed which are contained in the documents of the Second Vatican Council(25) and in other recent documents of the Holy See concerning academic studies.(26)

Article 81. The curriculum of studies of a Faculty of Philosophy comprises:

a) the first cycle, basics, in which for two years or four semesters an organic exposition of the various parts of philosophy is imparted, which includes treating the world, man, and God. It also includes the history of philosophy, together with an introduction into the method of scientific research;

b) the second cycle, the beginning of specialization, in which for two years or four semesters through special disciplines and seminars a more profound consideration is imparted in some sector of philosophy;

c) the third cycle, in which for a suitable period of time philosophical maturity is promoted, especially by means of writing a doctoral dissertation.

Article 82. The first cycle ends with the degree of Baccalaureate, the second with the specialized Licentiate, and the third with the Doctorate.

Article 83. To enroll in a Faculty of Philosophy, the student must have done the previous studies called for in accordance with Article 32 of the Constitution.

Section IV

Other Faculties

Article 84. Besides the Faculties of Sacred Theology, Canon Law, and Philosophy, other Faculties have been or can be canonically erected, according to the needs of the Church and with a view to attaining certain goals, as for instance:

a) a more profound study of certain sciences which are of greater importance to the theological, juridical, and philosophical disciplines;

b) the promotion of other sciences, first of all the humanities, which have a close connection with the theological disciplines or with the work of evangelization;

c) the cultivation of letters which provide a special help either to a better understanding of Christian revelation or else in carrying on the work of evangelizing;

d) finally, the more exacting preparation both of the clergy and laity for properly carrying out specialized apostolic tasks.

Article 85. In order to achieve the goals set down in the preceding article, the following Faculties or institutions "ad instar Facultatis" have already been erected and authorized to grant degrees by the Holy See itself:

- Christian archaeology,

- Biblical studies and ancient Eastern studies,

- Church history,

- Christian and classical literature,

- Liturgy,

- Missiology,

- Sacred Music,

- Psychology,

- Educational science or Pedagogy,

- Religious science,

- Social sciences,

- Arabic studies and Islamology,

- Mediaeval studies,

- Oriental Ecclesiastical studies,

- "Utriusque Iuris" (both canon and civil law).

Article 86. It belongs to the Sacred Congregation for Catholic Education to set out, in accordance with circumstances, special norms for these Faculties, just as has been done in the above sections for the Faculties of Sacred Theology, Canon Law, and Philosophy.

Article 87. The Faculties and Institutes for which special norms have not yet been set out must also draw up their own Statutes. These must conform to the General Norms established in the first part of this Constitution, and they must take into account the special nature and purpose proper to each of these Faculties or Institutes.

Transitional Norms

Article 88. This present Constitution comes into effect on the first day of the 1980 - 1981 academic year or of the 1981 academic year, according to the scholastic calendar in use in various places.

Article 89. Each University or Faculty must, before January 1, 1981, present its proper Statutes, revised according to this Constitution, to the Sacred Congregation for Catholic Education. If this is not done, its power to give academic degrees is, by this very fact, suspended.

Article 90. In each Faculty the studies must be arranged so that the students can acquire academic degrees according to the norms of this Constitution, immediately upon this Constitution coming into effect, preserving the students' previously acquired rights.

Article 91. The Statutes are to be approved experimentally for three years so that, when this period is completed, they may be perfected and approved definitively.

Article 92. Those Faculties which have a juridical connection with civil authorities may be given a longer period of time to revise their Statutes, providing that this is approved by the Sacred Congregation for Catholic Education.

Article 93. It is the task of the Sacred Congregation for Catholic Education, when, with the passage of time, circumstances shall require it, to propose changes to be introduced into this Constitution, so that this same Constitution may be continuously adapted to the needs of Ecclesiastical Faculties.

Article 94. All laws and customs presently obtaining which are in contradiction to this Constitution are abrogated, whether these are universal or local, even if they are worthy of special or individual mention. Likewise completely abrogated are all privileges hitherto granted by the Holy See to any person, whether physical or moral, if these are contrary to the prescriptions of this Constitution.

It is my will, finally, that this my Constitution be established, be valid, and be efficacious always and everywhere, fully and integrally in all its effects, that it be religiously observed by all to whom it pertains, anything to the contrary notwithstanding. If anyone, knowingly or unknowingly, acts otherwise than I have decreed, I order that this action is to be considered null and void.

Given at St. Peter's in Rome, the fifteenth day of April, the Solemnity of the Resurrection of our Lord Jesus Christ, in the year 1979, the first of my Pontificate.

FOOTNOTES

Cf. Second Vatican Ecumenical Council, Pastoral Constitution on the Church in the Modern World Gaudium et Spes, 43ff.: AAS 58 (1966) pp. 1061ff.

Cf. Apostolic Exhortation Evangelii Nuntiandi, 19 - 20: AAS 68 (1976) pp. 18f.

Cf. ibid., 18: AAS 68 (1976) pp. 17f. and also Pastoral Constitution on the Church in the Modern World Gaudium et Spes, 58: AAS 58 (1966) p. 1079.

Cf. Second Vatican Ecumenical Council Declaration on Christian Education Gravissimum Educationis, 10: AAS 58 (1966) p. 737.

AAS 23 (1931) p. 241.

AAS 42 (1950) p. 387.

Declaration on Christian Education Gravissimum Educationis, 10: AAS 58 (1966) p. 737.

Ibid.

Ibid. 11: AAS 58 (1966) p. 738.

Pastoral Constitution on the Church in the Modern World Gaudium et Spes, 62: AAS 58 (1966) p. 1083.

Cf. Pope John XXIII, Allocution at the opening of the Second Vatican Ecumenical Council: AAS 54 (1962) p. 792 and also the Pastoral Constitution on the Church in the Modern World Gaudium et Spes, 62: AAS 58 (1966) p. 1083.

Pope Paul VI, Letter Le transfert a Louvain - la - Neuve to the Rector of the Catholic University of Louvain, September 13, 1975 (cf. L'Osservatore Romano, September 22 - 23, 1975). Also cf. Pope John

Paul II, Encyclical Letter Redemptor Hominis, 19: AAS 71 (1979) pp. 305ff.

Declaration on Christian Education Gravissimum Educationis, 11: AAS 58 (1966) p. 738.

Cf. Apostolic Constitution Regimini Ecclesiae Universae, 78: AAS 59 (1967) p. 914.

Cf. Motu Proprio Sedula Cura: AAS 63 (1971) pp. 665ff. and also the Decree of the Pontifical Biblical Commission Ratio periclitandae doctrinae: AAS 67 (1975) pp. 153ff.

Cf. Second Vatican Ecumenical Council, Dogmatic Constitution on the Church Lumen Gentium, 25: AAS 57 (1965) pp. 29 - 31.

Second Vatican Ecumenical Council, Pastoral Constitution on the Church in the Modern World Gaudium et Spes, 59: AAS 58 (1966) p. 1080.

Second Vatican Ecumenical Council, Dogmatic Constitution on Divine Revelation Dei Verbum 24: AAS 58 (1966) p. 827.

Second Vatican Ecumenical Council, Declaration on Christian Education Gravissimum Educationis, 10: AAS 58 (1966) p. 737.

Second Vatican Ecumenical Council, Decree on the Missionary Activity of the Church Ad Gentes, 22: AAS 58 (1966) pp. 973ff.

See the Ecumenical Directory, Second Part: AAS 62 (1970) pp. 705 - 724.

See especially Second Vatican Ecumenical Council, Dogmatic Constitution on Divine Revelation Dei Verbum: AAS 58 (1966) pp. 713ff.

See especially the Letter of Pope Paul VI Lumen Ecclesiae, about St. Thomas Aquinas, of November 20, 1974: AAS 66 (1974) pp. 673ff. Also see the circular letters of the Sacred Congregation for Catholic Education: on the Theological Formation of Future Priests, February 22, 1976, on Canon Law Studies in Seminaries, March 1, 1975; and on Philosophical Studies, January 20, 1972.

See Second Vatican Ecumenical Council, Decree on Priestly Formation Optatam Totius, 15: AAS 58 (1966) p. 722.

Especially see the Second Vatican Council, Decree on Priestly Formation Optatam Totius: AAS 58 (1966) pp. 713ff. and the Declaration on Christian Education Gravissimum Educationis: AAS 58 (1966) pp. 728ff

See especially the letter of Pope Paul VI on St. Thomas Aquinas Lumen Ecclesiae of November 20, 1974: AAS 66 (1974) pp. 673ff. and the Circular letter of the Sacred Congregation for Catholic Education, On the Study of Philosophy in Seminaries, of January 20, 1972.

NORMS OF APPLICATION

OF THE SACRED CONGREGATION FOR CATHOLIC EDUCATION FOR THE CORRECT IMPLEMENTATION OF THE APOSTOLIC CONSTITUTION

SAPIENTIA CHRISTIANA

The Sacred Congregation for Catholic Education, according to article 10 of the Apostolic Constitution Sapientia Christiana, presents to the Ecclesiastical Universities and Faculties the following Norms of Application and orders that they be faithfully observed.

PART ONE

GENERAL NORMS

Section I

Nature and Purpose of Ecclesiastical Universities and Faculties

(Apostolic Constitution, articles 1 - 10)

Article 1. By the term University or Faculty is understood also those Athenaea, Institutes, or Academic Centers which have been canonically erected or approved by the Holy See with the right to confer academic degrees by the authority of the same See.

Article 2. With a view to promoting scientific research, a strong recommendation is given for specialized research centers, scientific periodicals and collections, and meetings of learned societies.

Article 3. The tasks for which students can be prepared can be either strictly scientific, such as research or teaching, or else pastoral. Account must be taken of this diversity in the ordering of the studies and in the determining of the academic degrees, while always preserving the scientific nature of the studies for both.

Article 4. Active participation in the ministry of evangelization concerns the action of the Church in pastoral work, in ecumenism, and in missionary undertakings. It also extends to the understanding, defense, and diffusion of the faith. At the same time it extends to the whole context of culture and human society.

Article 5. Bishops' Conferences, joined to the Apostolic See in these matters also, are thus to follow carefully the Universities and Faculties:

together with the Chancellor they are to foster their progress and, while of course respecting the autonomy of science according to the mind of the Second Vatican Council, they are to be solicitous for their scientific and ecclesial condition;

with regard to common problems which occur within the boundaries of their own region, they are to help, inspire, and harmonize the activity of the Faculties;

bearing in mind the needs of the Church and the cultural progress of their own area, they are to take care that there exist an adequate number of such Faculties;

to do all this, they are to constitute among themselves a commission for this purpose, which should be helped by a committee of experts.

Article 6. In preparing the Statutes and Study Program, the norms in Appendix I of these directives must be kept in mind.

Article 7. n. 1. The canonical value of an academic degree means that such a degree enables one to assume an office in the Church for which a degree is required. This is, first of all, for teaching sacred sciences in Faculties, major seminaries, or equivalent schools.

n. 2. The condition to be fulfilled for the recognition of individual degrees mentioned in article 9 of the Apostolic Constitution, concern, first of all, besides the consent of the local or regional ecclesiastical authorities, the college of teachers, the study program, and the scientific helps used.

n. 3. Degrees thus recognized, for certain canonical effects only may never be considered simply as equal to canonical degrees.

Section II

The Academic Community and Its Government (Apostolic Constitution, articles 11 - 21)

Article 8. The duty of the Chancellor is:

to promote continually the progress of the University or Faculty, to advance scientific progress, to ensure that Catholic doctrine is integrally followed, and to enforce the faithful implementation of the Statutes and the prescriptions of the Holy See;

to help ensure close relationships between all the different ranks and members of the community;

to propose to the Sacred Congregation for Catholic Education the names of those who are to be nominated or confirmed as Rector and President, as well as the names of the teachers for whom a nihil obstat is to be requested;

to receive the profession of faith of the Rector and President;

to give to or take away from the teachers the canonical mission or permission to teach, according to the norms of the Constitution;

to inform the Sacred Congregation for Catholic Education about more important matters and to send to that Congregation every three years a detailed report on the academic, moral, and economic condition of the University or Faculty.

Article 9. If the University or Faculty depends upon a collegial entity (for instance, on an Episcopal Conference), one designated member of the group is to exercise the office of Chancellor.

Article 10. The local Ordinary, if he is not the Chancellor, since he has the pastoral responsibility for his Diocese, is, whenever something in the University or Faculty is known to be contrary to doctrine, morals, or ecclesiastical discipline, to take the matter to the Chancellor so that the latter may take action. In case the Chancellor does nothing, the Ordinary may have recourse to the Holy See, without prejudice to his own obligation to provide personally for action in those cases which are more serious or urgent and which carry danger for his Diocese.

Article 11. What is contained in article 19 of the Constitution must be explained further in the proper Statutes of the individual Faculties, giving more weight, as the case may require, either to collegial or else to personal government, while always preserving both forms. Account should be taken of the university practice of the region where the Faculty is located or of the Religious Institute on which the Faculty may depend.

Article 12. Besides the University Council (Academic Senate) and the Faculty Council, both of which must everywhere exist even if under different names, the Statutes can suitably establish other special councils or commissions for scientific learning, teaching, discipline, finances, etc.

Article 13. n. 1. According to the Constitution, a Rector is one who presides over a University; a President is one who presides over an Institute or a Faculty which exists separately; a Dean is one who presides over a Faculty which is a part of a University.

n. 2. The Statutes are to fix a term of office for these persons (for instance, three years) and are to determine how and how many times their term can be renewed.

Article 14. The office of the Rector or President is:

to direct, promote, and coordinate all the activity of the academic community;

to be the representative of the University or of the Institute or Faculty existing separately;

to convoke the Council of the University or of the Institute or Faculty existing separately and preside over the same according to the norms of the Statutes;

to watch over the administration of temporalities;

to refer more important matters to the Chancellor;

to send, every year, a statistical summary to the Sacred Congregation for Catholic Education, according to the outline provided by that same Congregation.

Article 15. The Dean of the Faculty is:

to promote and coordinate all the activity of the Faculty, especially matters regarding studies, and to see to providing with due speed for their needs;

to convoke the Faculty Council and preside over it;

to admit or exclude students in the name of the Rector according to the norms of the Statutes;

to refer to the Rector what is done or proposed by the Faculty;

to see that the instructions of higher authorities are carried out.

Section III

Teachers (Apostolic Constitution, articles 22 - 30)

Article 16. n. 1. Teachers who are permanently attached to a Faculty are, in the first place, those who are assumed in full and firm right and who are called Ordinary Professors; next come Extraordinary Professors. It can also be useful to have others according to university practice.

n. 2. Besides permanent teachers, there are other teachers who are designated by various titles, in the first place, those invited from other Faculties.

n. 3. Finally, it is also opportune to have Teaching Assistants to carry out certain academic functions.

Article 17. By a suitable doctorate is meant one that corresponds to the discipline that is being taught. If the discipline is sacred or connected with the sacred, the doctorate must be canonical. In the event that the doctorate is not canonical, the teacher will usually be required to have at least a canonical licentiate.

Article 18. Non - Catholic teachers, co - opted according to the norms of competent ecclesiastical authority,(1) require permission to teach from the Chancellor.

Article 19. n. 1. The Statutes must establish when a permanent status is conferred in relationship with the obtaining of the nihil obstat that must be procured in accordance with article 27 of the Constitution.

n. 2. The nihil obstat of the Holy See is the declaration that, in accordance with the Constitution and the special Statutes, there is nothing to impede a nomination which is proposed. If some impediment should exist, this will be communicated to the Chancellor who will listen to the teacher in regard to the matter.

n. 3. If particular circumstances of time or place impede the requesting of the nihil obstat from the Holy See, the Chancellor is to take counsel with the Sacred Congregation for Catholic Education to find a suitable solution.

n. 4. In Faculties which are under special concordat law the established norms are to be followed.

Article 20. The time interval between promotions, which must be at least three years, is to be set down in the Statutes.

Article 21. n. 1. Teachers, first of all the permanent ones, are to seek to collaborate with each other. It is also recommended that there be collaboration with the teachers of other Faculties, especially those with subjects that have an affinity or some connection with those of the Faculty.

n. 2. One cannot be at one and the same time a permanent teacher in more than one Faculty.

Article 22. n. 1. The Statutes are to set out with care the procedure in regard to the suspension or dismissal of a teacher,

especially in matters concerning doctrine.

n. 2. Care must be taken that, first of all, these matters be settled between the Rector or President or Dean and the teacher himself. If they are not settled there, the matters should be dealt with by an appropriate Council or committee, so that the first examination of the facts be carried out within the University or Faculty itself. If this is not sufficient, the matters are to be referred to the Chancellor, who, with the help of experts, either of the University or the Faculty or from other places, must consider the matter and provide for a solution. The possibility remains open for recourse to the Holy See for a definitive solution, always allowing the teacher to explain and defend himself.

n. 3. However, in more grave or urgent cases for the good of the students and the faithful, the Chancellor can suspend the teacher for the duration of the regular procedure.

Article 23. Diocesan priests and Religious or those equivalent to Religious from whatever Institute, in order to be teachers in a Faculty or to remain as such, must have the consent of their proper Ordinary or Religious Superior, following the norms established in these matters by competent Church authority.

Section IV

Students (Apostolic Constitution, articles 31 - 35)

Article 24. 1. Legal testimony, according to the norm of article 31 of the Constitution:

1) about a moral life is to be given, for clergy and seminarians, their own Ordinary or his delegate; for all other persons by some ecclesiastic;

2) about previous studies in the study title required in accordance with article 32 of the Constitution.

n. 2. Since the studies required before entry into a University differ from one country to another, the Faculty has the right and duty to investigate whether all the disciplines have been studied which the Faculty itself considers necessary.

n. 3. A suitable knowledge of the Latin language is required for the Faculties of the sacred sciences, so that the students can understand and use the sources and the documents of the Church.(2)

n. 4. If one of the disciplines has been found not to have been studied or to have been studied in an insufficient way, the Faculty is to require that this be made up at a suitable time and verified by an examination.

Article 25. n. 1. Besides ordinary students, that is, those studying for academic degrees, extraordinary students can be admitted according to the norms determined in the Statutes.

n. 2. A person can be enrolled as an ordinary student in only one Faculty at a time.

Article 26. The transfer of a student from one Faculty to another can take place only at the beginning of the academic year or semester, after a careful examination of his academic and disciplinary situation. But in any event nobody can be given an academic degree unless all the requirements for the degree are fulfilled as the Statutes of the Faculty demand.

Article 27. In the norms which determine the suspension or the expulsion of a student from a Faculty, the student's right to defend himself must be safeguarded.

Section V

Officials and Staff Assistants (Apostolic Constitution, articles 36 - 37)

Article 28. In the Statutes or in some other suitable document of the University or Faculty, the rights and duties of the Officials and Staff Assistants should be determined, as well as their participation in the community life of the University.

Section VI

Study Program

(Apostolic Constitution, articles 38 - 45)

Article 29. The Statutes of each Faculty must define which disciplines (principal and auxiliary) are obligatory and must be followed by all, and which are free or optional.

Article 30. Equally, the Statutes are to determine the practical exercises and seminars in which the students must not only be present but also actively work together with their colleagues and produce their own expositions.

Article 31. The lectures and practical exercises are to be suitably distributed so as to foster private study and personal work under the guidance of the teachers.

Article 32. n. 1. The Statutes are also to determine in what way the examiners are to make their judgments about candidates.

n. 2. In the final judgment about the candidates for the individual academic degrees, account is to be taken of all the marks received in the various tests in the same cycle, whether written or oral.

n. 3. In the examinations for the giving of degrees, especially the doctorate, it is also useful to invite examiners from outside the Faculty.

Article 33. The Statutes are to indicate the permanent curricula of studies which are to be instituted in a Faculty for special purposes and indicate the diplomas which are conferred at their conclusion.

Section VII

Academic Degrees (Apostolic Constitution, articles 46 - 51)

Article 34. In Ecclesiastical Universities or Faculties which are canonically erected or approved, the academic degrees are given in the name of the Supreme Pontiff.

Article 35. The Statutes are to establish the necessary requisites for the preparation of the doctrinal dissertation and the norms for their public defense and publication.

Article 36. A copy of the published dissertation must be sent to the Sacred congregation for Catholic Education. It is recommended that copies also be sent to other Ecclesiastical Faculties, at least those of the same region, which deal with the same science.

Article 37. Authentic documents regarding the conferring of degrees are to be signed by the Academic Authorities, according to the Statutes, and then are to be countersigned by the Secretary of the University or Faculty and have the appropriate seal affixed.

Article 38. Honorary doctorates are not to be conferred except with the consent of the Chancellor, who, having listened to the opinion of the University or Faculty Council, has obtained the nihil obstat of the Holy See.

Section VIII

Matters Relating to Teaching (Apostolic Constitution, articles 52 - 55)

Article 39. The University or Faculty must have lecture halls which are truly functional and worthy and suited to the

teaching of the disciplines and to the number of students.

Article 40. There must be a library open for consultation, in which the principle works for the scientific work of the teachers and students are available.

Article 41. Library norms are to be established in such a way that access and use is made easy for the students and teachers.

Article 42. Cooperation and coordination between libraries of the same city and region should be fostered.

Section IX

Economic Matters (Apostolic Constitution, articles 56 - 59)

Article 43. To provide for continuous good administration, the authorities must inform themselves at set times about the financial situation and they must provide for careful, periodic audits.

Article 44. n. 1. Suitable ways should be found so that tuition fees do not keep from academic degrees gifted students who give good hope of one day being useful to the Church.

n. 2. Therefore care must be taken to set up forms of assistance for scholars, whatever their various names (scholarships, study burses, student subsidies, etc.), to be given to needy students.

Section X Planning and Cooperation of Faculties

(Apostolic Constitution, articles 60 - 64)

Article 45. n. 1. In order to undertake the erection of a new University or Faculty, it is necessary that:

a) a true need or usefulness can be demonstrated, which cannot be satisfied either by affiliation, aggregation, or incorporation,

b) the necessary prerequisites are present, which are mainly:

1) permanently engaged teachers who in number and quality respond to the nature and demands of a Faculty;

2) a suitable number of students;

3) a library with scientific apparatus and suitable buildings;

4) economic means really sufficient for a University or Faculty;

c) the Statutes, together with the Study Program, be exhibited, which are in conformity to the Constitution and to these Norms of Application.

n. 2. The Sacred Congregation for Catholic Education - after listening to the advice first of the Bishops' Conference, mainly from the pastoral viewpoint, and next of experts, principally from nearby Faculties, mainly from the scientific viewpoint - will decide about the suitability of a new erection. This is commonly conceded at first experimentally for a period of time before being definitely confirmed.

Article 46. When, on the other hand, the approval of a University or Faculty is undertaken, this is to be done:

a) after the consent of both the Episcopal Conference and the local diocesan authority is obtained;

b) after the conditions stated in article 45, n. 1, under b) and c) are fulfilled.

Article 47. The conditions for affiliation regard, above all, the number and qualification of teachers, the study program, the library, and the duty of the affiliating Faculty to help the institution being affiliated. Therefore, this is usually granted only when the affiliating Faculty and the affiliated institution are in the same country or cultural region.

Article 48. n. 1. Aggregation is the linking with a Faculty of some Institute which embraces only the first and second cycle, for the purpose of granting the degrees corresponding to those cycles through the Faculty.

n. 2. Incorporation is the insertion into a Faculty of some Institute which embraces either the second or third cycle or both, for the purpose of granting the corresponding degrees through the Faculty.

n. 3. Aggregation and incorporation cannot be granted unless the Institute is specially equipped to grant degrees in such a way that there is a well - founded hope that, through the connection with the Faculty, the desired ends will be achieved.

Article 49. n. 1. Cooperation is to be fostered among the Ecclesiastical Faculties themselves by means of teacher exchanges, mutual communication of scientific work, and the promoting of common research for the benefit of the People of God.

n.2. Cooperation with other Faculties, even those of non - Catholics, should be promoted, care always however being taken to preserve one's own identity.

PART TWO

SPECIAL NORMS

Section I

Faculty of Sacred Theology (Apostolic Constitution, articles 66 - 74)

Article 50. The theological disciplines are to be taught in such a way that their organic connection is made clear and that light be shed upon the various aspects or dimensions that pertain intrinsically to the nature of sacred doctrine. The chief ones are the biblical, patristic, historical, liturgical, and pastoral dimensions. The students are to be led to a deep grasp of the material, at the same time as they are led to form a personal synthesis, to acquire a mastery of the method of scientific research, and thus to become able to explain sacred doctrine appropriately.

Article 51. The obligatory disciplines are:

1. in the first cycle:

a) the philosophical disciplines needed for theology, which are above all systematic philosophy together with its main parts and its historical evolution;

b) the theological disciplines, namely:

- Sacred Scripture, introduction and exegesis;

- fundamental theology, which also includes reference to ecumenism, non - Christian religions, and atheism;

- dogmatic theology;

- moral and spiritual theology;

- pastoral theology;

- liturgy;

- Church history, patrology, archaeology;

- Canon law.

c) the auxiliary disciplines, namely, some of the sciences of man and, besides Latin, the biblical languages insofar as they are required for the following cycles.

2. in the second cycle: the special disciplines established in various sections, according to the diverse specializations offered, along with the practical exercises and seminars, including written work.

3. in the third cycle: the Statutes are to determine if special disciplines are to be taught and which ones, together with practical exercises and seminars.

Article 52. In the fifth - year basic cycle, diligent care must be exercised that all the disciplines are taught with order, fullness, and with correct method, so that the student receives harmoniously and effectively a solid, organic, and complete basic instruction in theology, which will enable him either to go on to the next cycle's higher studies or to exercise some office in the Church.

Article 53. Besides examinations or equivalent tests for each discipline, at the end of the first and of the second cycle there is to be a comprehensive examination or equivalent test, so that the student proves that he has received the full and scientific formation demanded by the respective cycle.

Article 54. It belongs to the Faculty to determine under which conditions students who have completed a normal six - year philosophy - theology course in an ordinary seminary or in some other approved institution of higher learning may be admitted into the second cycle, taking account of their previous studies and, where necessary, prescribing special courses and examinations.

Section II

Faculty of Canon Law (Apostolic Constitution, articles 76 - 79)

Article 55. In a Faculty of Canon Law, whether Latin or Oriental, there must be a careful setting forth both of the history and texts of ecclesiastical laws and of their disposition and connection.

Article 56. The obligatory disciplines are:

1. in the first cycle:

a) the general fundamentals of canon law;

b) the elements of Sacred Theology (especially of ecclesiology and sacramental theology) and of philosophy (especially ethics and natural law) which by their very nature are prerequisites for the study of canon law. It is useful to add elements from the sciences of man which are connected with the juridical sciences.

2. in the second cycle:

a) the Code of Canon Law with all its various parts and the other canonical laws;

b) the connected disciplines, which are: the philosophy of law, the public law of the Church, fundamentals of Roman law, elements of civil law, the history of canon law. The student must also write a special dissertation.

3. in the third cycle: the Statutes are to determine which special disciplines and which practical exercises are to be prescribed, according to the nature of the Faculty and the needs of the students.

Article 57. n. 1. Whoever successfully completes the philosophy - theology curriculum in an ordinary seminary or in some other approved institution of higher learning, or who has already successfully completed the studies of the first cycle, may be admitted directly into the second cycle.

n. 2. A person who has already earned a doctorate in civil law, may be allowed, according to the judgment of the Faculty, to abbreviate the course, always maintaining however the obligation to pass all the examinations and tests required for receiving academic degrees.

Article 58. Besides examinations or equivalent tests for each discipline, at the end of the second cycle there is to be a comprehensive examination or equivalent test, whereby the student proves that he has received the full and scientific formation demanded by the cycle.

Section III

Faculty of Philosophy

(Apostolic Constitution, articles 79 - 83)

Article 59. n. 1. Philosophy is to be taught in such a way that the students in the basic cycle will come to a solid and coherent synthesis of doctrine, will learn to examine and judge the different systems of philosophy, and will also gradually become accustomed to personal philosophical reflection.

n. 2. All of the above is to be perfected in the second cycle, which begins specialization. In this cycle there is to be a deeper grasp of the determined object of philosophy and of the proper philosophical method.

Article 60. The obligatory disciplines are:

1. in the first cycle:

a) systematic philosophy (preceded by a general introduction) with its principal parts: philosophy of knowledge, natural philosophy, philosophy of man, philosophy of being (including natural theology) and moral philosophy;

b) history of philosophy, especially of modern philosophy, with a careful study of the systems which are exercising a major influence;

c) the auxiliary disciplines, namely selected natural and human sciences.

2. in the second cycle: the special disciplines established in various sections, according to the diverse specializations offered, along with practical exercises and seminars, including written work.

3. in the third cycle: the Statutes are to determine if special disciplines are to be taught and which ones, together with the practical exercises and seminars.

Article 61. Besides examinations or equivalent tests for each discipline, at the end of the first and second cycle there is to be a comprehensive examination or equivalent test whereby the student proves that he has received the full and scientific formation demanded by the respective cycle.

Article 62. It belongs to the Faculty to determine under what conditions students who have done a biennium of philosophy in an approved institution, or who have done a six - year philosophy - theology course in an ordinary seminary or equivalent school, may be admitted to the second cycle, taking account of their previous studies and, where

necessary, prescribing special courses and examinations.

Section IV

Other Faculties (Apostolic Constitution, articles 84 - 87)

Article 63. In accordance with article 86 of the Constitution, the Sacred Congregation for Catholic Education will gradually give special norms for the other Faculties, taking account of the experience already gained in these Faculties and Institutes.

Article 64. In the meantime, in Appendix II there is a list of the areas or divisions of ecclesiastical studies - besides the theological, canonical, and philosophical ones treated of in the three previous sections of these Norms of Application - which at the present time in the Church are ordered academically and are in existence as Faculties, Institutes ad instar, or Specialization Sections. The Sacred Congregation for Catholic Education will add to the list of these Sections when appropriate, indicating for these Sections their special purposes and the more important disciplines to be taught and researched.

His Holiness John

Paul II, by divine Providence Pope, has ratified, confirmed, and ordered to be published each and every one of these Norms of Application, anything to the contrary notwithstanding.

Given from the offices of the Sacred Congregation for Catholic Education in Rome, April 29, the Memorial of St. Catherine of Siena, Virgin and Doctor of the Church, in the year of our Lord 1979.

Gabriel - Marie Cardinal GARRONE , Prefect

Antonio Maria JAVIERRE ORTAS , Titular Archbishop of Meta, Secretary

APPENDIX I According to Article 6 of Norms of Application Norms for Drawing Up Statutes

Taking into account what is contained in the Apostolic Constitution and in the Norms of Application -- and leaving to their own internal regulations what is of a particular or changeable nature -- the Universities or Faculties must mainly deal with the following points in drawing up their Statutes:

The name, nature and purpose of the University or Faculty (with a brief history in the foreword).

The government -- the Chancellor, the personal and collegial academic authorities: what their exact functions are; how the personal authorities are chosen and how long their term of office is; how the collegial authorities or the members of the Councils are chosen and how long their term is.

The teachers -- what the minimum number of teachers is in each Faculty; into which ranks the permanent and non - permanent are divided; what requisites they must have; how they are hired, named, promoted, and how they cease functioning; their duties and rights.

The students -- requisites for enrollment and their duties and rights.

The officials and staff assistants -- their duties and rights.

The study program -- what the order of studies is in each Faculty; how many cycles it has; what disciplines are taught; which are obligatory, attendance at them; which seminars and practical exercises; which examinations and tests are to be given.

The academic degrees -- which degrees are given in each Faculty and under what conditions.

Matters relating to teaching -- the library; how its conservation and growth are provided for; other didactic helps and scientific laboratories, if required.

Economic matters -- the financial endowment of the University or Faculty and its economic administration; norms for paying the staff assistants, teachers and officials; student fees and payments, burses and scholarships.

Relationships with other Faculties and Institutes, etc.

APPENDIX II According to Article 64 of the Norms of Application Divisions of Ecclesiastical Studies as Now (1979) Existing in the Church

LIST

Note: These individual study Sectors are listed alphabetically (according to their Latin names) and in parenthesis is noted the academic organizational form (whether a Faculty or an Institute ad instar or a Sector of specialization) in which it now exists in some ecclesiastical academic center. Not listed are the studies of a theological, philosophical, or canonical kind which are treated in articles 51, 56, and 60 of the Norms of Application.

Arabic - Islamic studies (an Institute ad instar, a specialized Sector in a Theology Faculty).

Christian Archaeology studies (an Institute ad instar).

Studies in Atheism (a specialized Sector in a Theology and/or Philosophy Faculty).

Biblical studies (a Faculty of Biblical Science, a specialized Sector in a Theology Faculty).

Catechetical studies (a specialized Sector in a Theology or Education Faculty).

Ecclesiastical Oriental studies (a Faculty of Ecclesiastical Oriental Studies).

Education studies (a Faculty of Education).

Church History studies (a Faculty of Church History, a specialized Sector in a Theology Faculty).

Comparative Canonical - Civil Juridical studies (a Faculty of comparative civil law).

Classical and Christian Literary studies (a Faculty of Christian and Classical Letters).

Liturgical studies (a Faculty, a specialized Sector in a Theology Faculty).

Mariological studies (a specialized Sector in a Theology Faculty).

Medieval studies (an Institute ad instar, a specialized Sector in a Faculty of Theology or Canon Law or Philosophy).

Missiological studies (a Faculty of Missiology, a specialized Sector in a Theology Faculty).

Moral studies (a specialized Sector in a Theology Faculty).

Studies in Sacred Music (an Institute ad instar, a specialized Sector in a Theology Faculty).

Ecumenical studies (a specialized Sector in a Theology Faculty).

Ancient Oriental studies (a Faculty of Eastern Antiquity, a specialized Sector in a Theology or Philosophy Faculty).

Pedagogical studies (a Faculty of Pedagogy, a specialized Sector in a Philosophy or Education Faculty).

Pastoral studies (a specialized Sector in a Theology Faculty).

Patristic studies (a specialized Sector in a Theology Faculty).

Studies in Psychology (an Institute ad instar, a specialized Sector in a Faculty of Philosophy, or Pedagogy, or Education).

Studies in Religion and Religious Phenomenology (a specialized Sector in a Theology or Philosophy Faculty).

Catholic Religious studies (a Higher Institute of Religious Science).

Sociological studies (a Faculty of Social Science, a specialized Sector in a Faculty of Education).

Spirituality studies (a specialized Sector in a Theology Faculty.

Studies in the Theology of Religious Life (a specialized Sector in a Theology Faculty).

FOOTNOTES

See the Ecumenical Directory, Second Part: AAS 62 (1970), pp. 705ff.

The Second Vatican Ecumenical Council, Decree on Priestly Formation Optatam Totius, 13: AAS 58 (1966), p. 721 and the Chirograph of Pope Paul VI Romani Sermonis: AAS 68 (1976), pp. 481ff.

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